

STATE OF MICHIGAN
IN THE THIRD JUDICIAL CIRCUIT FOR THE COUNTY OF WAYNE
FAMILY DIVISION, DOMESTIC RELATIONS

ADRIENNE MARJORIE ROCKENHAUS,
Plaintiff,

v.

CONRAD ALAN ROCKENHAUS,
Defendant.

Case No. **26-104594-DO**

Hon. **Nicole N. Goodson**

**DEFENDANT'S MOTION FOR TEMPORARY RESTRAINING ORDER
PROHIBITING DISSIPATION OF USAA ACCOUNT RECEIVING
DIVERTED FEDERAL VETERANS AND SOCIAL SECURITY BENEFITS**

NOW COMES Defendant, **Conrad Alan Rockenhaus**, appearing pro se, and pursuant to MCR 3.310, MCL 552.401, 38 USC § 5301, 42 USC § 407, 42 USC § 405(j), and the Court's inherent authority, respectfully moves this Honorable Court for the entry of a Temporary Restraining Order directed at one or more financial accounts at USAA Federal Savings Bank, including specifically Account 0350173818 (routing number 314-074-269), under the operational control of Plaintiff, into which federally-protected veterans benefits and Social Security Disability Insurance benefits belonging to Defendant have been diverted. The factual predicate for this Motion is documented in the existing record and does not require discovery to establish. In support thereof, Defendant states as follows:

I. RELATIONSHIP TO PENDING OMNIBUS MOTION

1. Defendant's Omnibus Three-Layer Motion, filed in this matter on April 15, 2026 and presently calendared for hearing on June 4, 2026, seeks at Part Two relief item 11 a status quo injunction directed at Plaintiff's conduct, prohibiting her from dissipating, transferring, concealing, or otherwise disposing of marital assets or any funds wrongfully diverted from Defendant pending further order of this Court.
2. The Omnibus Motion's Part Two relief item 11 operates as a behavioral injunction backed by contempt enforcement. It is directed at Plaintiff. It does not provide notice to the financial institution holding the diverted funds, and it does not create institution-side compliance flags that would prevent unilateral dissipation between filing and contempt enforcement.
3. This Motion supplements the Omnibus Motion by requesting a Temporary Restraining Order directed at a specific identified financial account at USAA Federal Savings Bank. The Temporary Restraining Order requested in this Motion provides the institution-directed component that the Omnibus Motion does not. The two forms of relief are complementary and not duplicative.

II. FACTUAL PREDICATE: DOCUMENTED DIVERSION OF FEDERAL BENEFITS

TO PLAINTIFF'S USAA ACCOUNT

A. Defendant's federal benefits

4. Defendant is a 100% service-connected disabled United States Navy veteran. His sole sources of income are VA Disability Compensation paid monthly by the Department of Veterans Affairs and Social Security Disability Insurance benefits paid by the Social Security Administration.
5. During Defendant's incarceration at FCI Milan beginning September 4, 2025, Plaintiff served as Defendant's Social Security Administration designated Representative Payee, holding fiduciary responsibility under 42 USC § 405(j). Plaintiff also held a Power of Attorney granted by Defendant during the pre-incarceration period.

B. The September 17, 2025 closure of the prior deposit account

6. Defendant's VA Disability Compensation was historically deposited to a joint financial account at SoFi Bank, routing number 031-101-334, Account 411003402583. The last successful deposit to that account was on August 29, 2025 in the amount of \$4,673.44.
7. On September 17, 2025, while Defendant was incarcerated, Plaintiff closed the joint SoFi account unilaterally. Plaintiff has admitted this fact in writing in her February 9, 2026 communication to Defendant's federal appellate attorney, in which Plaintiff described the closure as "extra judiciously" effected.
8. The Department of Veterans Affairs attempted to deposit Defendant's October 1, 2025 monthly payment of \$4,673.44 to the closed SoFi account. The deposit was returned on October 3, 2025 marked "Undeliverable" by the financial institution.

C. The redirect to a USAA account under Plaintiff's operational control

9. Following the closure of the joint SoFi account, Defendant's VA Disability Compensation was redirected to a new destination account: **Account 0350173818, routing number 314-074-269, at USAA Federal Savings Bank**. Defendant did not authorize this redirection. At the time of redirection, Defendant was incarcerated at FCI Milan and had no operational access to his va.gov account or to the id.me credentials necessary to redirect the deposit destination.
10. The Department of Veterans Affairs Payment History Inquiry (TINQ) for Defendant documents the following payments to USAA Account 0350173818 between October 9, 2025 and February 27, 2026:

Pay Date	Amount	Type
October 9, 2025	\$4,673.44	Retroactive
October 31, 2025	\$4,645.14	Regular
December 1, 2025	\$4,567.30	Regular
December 31, 2025	\$4,317.33	Regular
January 30, 2026	\$4,317.33	Regular
February 27, 2026	\$4,317.33	Regular
Total	\$26,837.87	

11. Defendant did not receive any of the above-listed payments. The funds were deposited to the USAA account under Plaintiff's operational control.

D. The SSDI Representative Payee overpayment to the same USAA account

12. On March 12, 2026, the Social Security Administration issued a formal demand letter (BNC No. 26D1153B02352-A) addressed to Plaintiff in her capacity as Defendant's

Representative Payee, demanding return of \$12,074.50 in overpayments. The SSA demand letter identifies Account 0350173818 as the deposit destination for the funds at issue. The same USAA account that received the redirected VA Disability Compensation also received the SSDI Representative Payee overpayment.

13. The Social Security Administration's Office of Inspector General has opened an investigation regarding Plaintiff's conduct as Representative Payee. The Department of Veterans Affairs Office of Inspector General has opened VA OIG Case No. 2026-18750 regarding the redirection of Defendant's VA Disability Compensation. The Ann Arbor Police Department has opened Case No. 26-11892 regarding related conduct.

E. Aggregate documented diversion to USAA Account 0350173818

14. The total documented diversion of federally-protected benefits to USAA Account 0350173818 between October 2025 and February 2026 is at minimum \$39,326.87 (combining \$26,837.87 in VA Disability Compensation and \$12,074.50 in SSDI overpayments). Subsequent monthly VA Disability Compensation payments and any SSDI payments after February 2026 may have been deposited to the same account or to a successor or related account at USAA.

F. Plaintiff's continued operational access to USAA infrastructure as of May 6, 2026

15. On May 6, 2026, USAA contacted Defendant directly to inform Defendant that Plaintiff had attempted to make changes to insurance policies on Defendant's USAA profile, that USAA had identified the attempt as inconsistent with legitimate spousal inquiry, and that USAA had removed Plaintiff's spousal access from Defendant's USAA profile.
16. The May 6, 2026 episode confirms that as of that date Plaintiff retained operational access to USAA account infrastructure associated with Defendant's identity. The episode also confirms that USAA, as the institution holding the diverted federal benefits, has its own institutional awareness of Plaintiff's attempted unauthorized actions on accounts associated with Defendant. The institution-side awareness existing at USAA makes USAA the appropriate target for institution-directed restraints.

G. Plaintiff's own admission of intent to use legal process to bar Defendant from his benefits

17. On February 9, 2026, Plaintiff communicated in writing to Defendant's federal appellate attorney, Kaycee Berente, stating that Defendant would be released from federal custody with "\$0.00 accessible cash," that Plaintiff had formally revoked her residence as Defendant's release option, and that Plaintiff was retaining counsel to secure a restraining order barring Defendant from accessing his financial assets.
18. The February 9, 2026 communication is not an allegation. It is Plaintiff's own written admission of her intent to use legal process to deprive Defendant of access to his federally-protected benefits. The admission predates the filing of the Personal Protection Order on February 19-20, 2026 and contextualizes the financial harm Plaintiff has caused and is positioned to continue causing.

III. LEGAL FRAMEWORK

A. MCR 3.310 authorizes Temporary Restraining Orders

19. MCR 3.310 authorizes this Court to enter a Temporary Restraining Order without notice if the moving party establishes by specific facts shown by affidavit or by a verified pleading that immediate and irreparable injury, loss, or damage will result before the adverse party can be heard in opposition. Defendant's Counterclaim, filed in this matter, is verified. The

factual predicate at Section II above is supported by documentary evidence already in the record.

B. Federal protection of veterans benefits

20. Veterans Disability Compensation benefits are protected from assignment, attachment, levy, or seizure under 38 USC § 5301(a)(1). The federal anti-assignment protection applies to Defendant's VA Disability Compensation regardless of where the funds are deposited. Funds remain identifiable as veterans benefits when their source is documented in agency payment records, as is the case here.

C. Federal protection of Social Security benefits

21. Social Security benefits are protected from execution, levy, attachment, garnishment, and other legal process under 42 USC § 407(a). Where benefits are paid to a Representative Payee under 42 USC § 405(j), the Representative Payee holds the funds in fiduciary trust for the beneficiary. Misuse of Representative Payee funds is sanctionable under federal law and gives rise to civil and potentially criminal consequences.

D. Pontiac Fire Fighters four-factor test

22. The Michigan Supreme Court has set forth a four-factor test for the entry of injunctive relief in *Pontiac Fire Fighters Union Local 376 v. City of Pontiac*, 482 Mich 1 (2008). The four factors are: (a) likelihood of success on the merits; (b) irreparable harm absent the injunction; (c) balance of hardships; and (d) the public interest.

IV. APPLICATION OF THE FOUR-FACTOR TEST

A. Likelihood of success

23. The likelihood-of-success factor is satisfied by documentary evidence already in the record. The VA Payment History Inquiry establishes the dates, amounts, and routing destinations of the diverted payments to USAA Account 0350173818. The SSA overpayment demand letter establishes the SSA's own determination that funds were misused in the Representative Payee role. Plaintiff's February 9, 2026 written admission establishes her own awareness of and intent regarding the diversion. Defendant does not require discovery to establish the predicate; the predicate is documentary and complete.

B. Irreparable harm

24. The irreparable-harm factor is satisfied for three independent reasons.
25. First, the funds at issue are federally-protected veterans and Social Security benefits paid in compensation for permanent service-connected disabilities and incapacitating medical conditions. These are not ordinary marital funds. They are the means by which Defendant funds his housing, his food, his medical care, and his daily survival. Continued dissipation of these funds produces ongoing and direct harm to Defendant's ability to live.
26. Second, dissipation of the diverted funds, once complete, cannot be reversed by judgment alone. Once funds have been transferred to third parties, converted to other assets, spent on consumption, or moved to accounts beyond the reach of judgment, recovery becomes practically impossible regardless of the favorability of the eventual judgment.
27. Third, Plaintiff has demonstrated, by her February 9, 2026 written admission and by her May 6, 2026 attempted action at USAA, that she is actively engaged in conduct directed at Defendant's accounts and benefits. The risk of further dissipation is not speculative; it is documented in real time.

C. Balance of hardships

28. The balance of hardships strongly favors the entry of the requested Temporary Restraining Order. The Order requested does not seize funds; it preserves them. Plaintiff would retain the account. Plaintiff would retain access for legitimate purposes upon application to this Court. The only conduct restrained is unilateral dissipation, transfer, or modification of the account pending the Court's ability to adjudicate the claims relating to those funds. Plaintiff suffers no cognizable hardship from being prohibited from dissipating funds the documentary record indicates do not belong to her. Defendant, by contrast, suffers permanent and irrecoverable loss absent the Order.

D. Public interest

29. The public interest factor strongly favors the entry of the requested Temporary Restraining Order. Federal protection of veterans and Social Security benefits exists because Congress determined that those benefits must reach the persons for whom they are paid. The integrity of the Representative Payee system depends on the ability of courts to halt misuse of fiduciary funds when misuse is documented. Michigan courts have a recognized interest in preventing the dissipation of marital and separate property pending divorce judgment, and an additional interest in preserving the structural protections Congress placed around federally-protected benefits.

V. RELIEF REQUESTED

WHEREFORE, Defendant **Conrad Alan Rockenhaus** respectfully requests that this Honorable Court enter the following Order:

A. Temporary Restraining Order

30. Enter a Temporary Restraining Order prohibiting Plaintiff Adrienne Marjorie Rockenhaus from:
- a. Withdrawing, transferring, dissipating, conveying, or otherwise disposing of any funds held in USAA Account 0350173818 (routing 314-074-269), or any successor, replacement, or related account at USAA Federal Savings Bank, or any other account at USAA Federal Savings Bank in which Plaintiff is a named accountholder, signatory, beneficial owner, or operational user, including but not limited to any account associated with Defendant's USAA profile and any account into which Defendant's VA Disability Compensation or SSDI benefits have been deposited at any time from September 1, 2025 through the date of entry of this Order;
 - b. Closing, transferring, modifying the ownership of, or transferring control over any USAA account identified in subsection (a) above;
 - c. Authorizing or directing any third party to take any of the actions prohibited above;
 - d. Modifying, deactivating, or removing any spousal access, joint access, or operational access on any USAA account associated with Defendant's USAA profile beyond the access removal already effected by USAA on May 6, 2026; and
 - e. Modifying any account-direction instructions on file with the Department of Veterans Affairs or the Social Security Administration that would route additional federal benefits payments to USAA Account 0350173818 or to any other account under her operational control.

B. Notice and Compliance Provisions

31. Enter the following provisions in conjunction with the Temporary Restraining Order:
- a. Authorizing Defendant to transmit copies of the entered Order to the legal, compliance,

and risk management departments of USAA Federal Savings Bank, with notice that USAA is on notice of the Order and may rely on it in determining whether to honor instructions presented by Plaintiff with respect to the identified accounts;

b. Permitting Plaintiff to apply to this Court for permission to access funds or take action otherwise restrained, upon a showing of legitimate need and with written notice to Defendant;

c. Requiring Plaintiff to produce, within fourteen days of entry of the Order, complete account statements for any restrained account covering the period from September 1, 2025 through the date of entry, redacted only as necessary to protect non-party personal identifiers;

d. Providing that any violation of this Order shall constitute contempt of court and may result in sanctions, fee-shifting, adverse inference instructions at trial, and any other relief this Court deems appropriate, including without limitation an order compelling specific accounting or reversal of the violating transaction; and

e. Providing that this Temporary Restraining Order shall remain in effect pending entry of a Preliminary Injunction or further order of this Court.

C. Hearing on Preliminary Injunction

32. Set this matter for hearing on Defendant's request for a Preliminary Injunction at the Court's earliest convenience following the entry of the Temporary Restraining Order.

D. Other Relief

33. Granting such other and further relief as this Court deems just and equitable.

Respectfully submitted,

/s/ Conrad A. Rockenhaus

Conrad Alan Rockenhaus, Defendant Pro Se

1690 Brookfield Drive

Ann Arbor, Michigan 48103

(254) 340-7910

conrad@rockenhaus.net

Dated: May 6, 2026

VERIFICATION

I, Conrad Alan Rockenhaus, declare under penalty of perjury that I have read the foregoing Motion for Temporary Restraining Order Prohibiting Dissipation of USAA Account Receiving Diverted Federal Veterans and Social Security Benefits, that the factual statements contained therein are true and correct to the best of my knowledge, information, and belief, and that the matters stated upon information and belief are believed to be true.

/s/ Conrad A. Rockenhaus

Conrad Alan Rockenhaus

Dated: May 6, 2026

CERTIFICATE OF SERVICE

I, Conrad Alan Rockenhaus, hereby certify that on May 7, 2026, I served a true and correct copy of the foregoing Defendant's Motion for Temporary Restraining Order Prohibiting Dissipation of USAA Account Receiving Diverted Federal Veterans and Social Security

Benefits upon Plaintiff Adrienne Marjorie Rockenhaus, by service upon her counsel of record in this matter, by First Class U.S. Mail, postage prepaid, and by electronic mail, addressed as follows:

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/s/ Conrad A. Rockenhaus

Conrad Alan Rockenhaus

Dated: May 7, 2026